



File No.: EXP202202309

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on February 9, 2022. The complaint is directed against CENTRO MÉDICO SALUS BALEARES, S.L. with NIF B07060478 (hereinafter SALUS BALEARES). The reasons for the complaint are as follows:

While at a medical center of SALUS BALEARES (Asistel Moraira clinic), the complainant was asked to take their temperature with a device located on the wall in front of the waiting room and next to the reception, thus visible to third parties who could see the body temperature reading. The complainant refused to take it, and as a result, was denied medical assistance (the performance of a blood test). They believe they have been discriminated against and that their rights have been violated. Along with the notification, photographs are provided showing the location of the thermometer at the aforementioned medical center, as well as a copy of the complaint form submitted by the complainant.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to SALUS BALEARES for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 1, 2022, as evidenced by the acknowledgment of receipt in the file.

On March 28, 2022, this Agency received a written response indicating the following:

- The measurement system used is a laser thermometer located at the entrance of the clinic, where the user individually takes their temperature, and the clinic's admission staff observes this measurement, without carrying out any type of temperature recording or identifying data of that user. Therefore, in no case does the temperature measurement taken (laser measurement from the forehead or hand) constitute the processing of personal data, and thus the intervention of the Spanish Agency for the Protection of Data, and the application of current data protection regulations is not applicable as there is no data processing.
- The automatic temperature measurement of a user, without carrying out a corresponding record, does not constitute data processing, and therefore there is no established purpose for such processing.
- Furthermore, if it were considered that data processing actually occurs, the purpose of this is the safety of workers and users of the clinic, viewed from the perspective of the health pandemic due to coronavirus, in which various protocols were established to normalize the return to normalcy with this measure (temperature measurement of users). There is a legal obligation under the Occupational Risk Prevention Law, which requires the employer to implement measures to ensure safety in the work environment.
- Specific instructions have been given for the operators assigned the function of controlling temperature to verbally inform individuals about the situation and the reason for such control, indicating that, at no time will the results of the measurements be recorded, stored, or used for any purpose other than advising on the safety measures to be adopted.
- It concludes that as long as there is no official regulation imposing a different measure, the protocol for temperature measurement of workers and users will continue to be implemented, legitimized by compliance with a legal obligation.

THIRD: On May 9, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The entity CENTRO MÉDICO SALUS BALEARES, S.L. is a company established in 2000 with a business volume of 34,816,282 euros in the 2021 fiscal year and 39,597,787 euros in the 2022 fiscal year, according to a report issued by the entity Axesor.

FIFTH: On May 8, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate a sanctioning procedure against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified in Article 83.5 of the GDPR and Article 83.4 of the GDPR respectively.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, they stated the following:

I. Regarding whether the temperature measurement constitutes the processing of personal data:
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Indica SALUS BALEARES that from what this Agency indicated in the own Agreement of Initiation, it is clear the criterion of this Agency regarding the fact that the measurement of temperature, without carrying out any type of recording, is NOT a data processing and therefore would be excluded from the scope of application of the current regulations on data protection.

Furthermore, SALUS BALEARES points out that the Agency follows the same criterion in other procedures in which it has been determined that the measurement of temperature through thermometers without recording the interested parties is not a processing of personal data (Procedure No.: E/03884/2020).

However, SALUS BALEARES warns that this Agency wants to establish that, in the present case, it is indeed a data processing, because according to the photographs provided by the complainant, the result of the measurement is visible or public.

SALUS BALEARES notes that, if the photographs provided in the complaint are analyzed, it can be seen how the device is located on a wall next to the reception, where the right side includes ornamental elements to prevent the result of the measurement from being visible from the right side, and includes indications to carry out the measurement by bringing the hand close to the device.

SALUS BALEARES points out that by bringing the hand within a few centimeters of the device, along with our body visually obstructing from a rear flank and the ornamental elements located at the reception to prevent possible visibility from the right side, it would be practically impossible for the temperature measurement to be visible to anyone other than the person who is carrying out the measurement.

Furthermore, SALUS BALEARES indicates that, based on the photographs provided in the procedure, it is not proven in any way that at the moment the complainant carried out their measurement, there was anyone in the waiting room located to the left of the reception, given that all the images that have been provided in the procedure do not refer to the moment when the interested party (complainant) carried out their temperature measurement to be able to enter the medical clinic Asistel Moraira.

In this regard, SALUS BALEARES believes that this case has not been examined in a conclusive manner by this Agency, as SALUS BALEARES has no record of any inspection visit by the AEPD to the Asistel Moraira clinic, in relation to the complaint received, in which it was examined or reviewed whether the photographs taken were a faithful reflection of reality or whether the temperature measurement system was installed correctly to avoid any type of publicity or revelation of the measurement results. It should be noted that since the day the health recommendation to measure the temperature of attendees at medical centers ceased to be mandatory, this clinic uninstalled the thermometer and therefore no further measurements have been carried out.

Moreover, SALUS BALEARES points out that the complainant states in their complaint (annex 1 complaint) that the measurement has NOT been carried out, which is why they were not allowed to access the clinical treatment. This fact does not make...

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more than reinforcing our argument that in the specific case we are dealing with, there has been no processing of personal data, according to the definitions of “personal data” and “processing” in Article 4 of the GDPR, because the claimant never measured their temperature.

II.- Regarding the quantification of sanctions

SALUS BALEARES points out that in the sanctioning procedure a series of aggravating factors are established in relation to the alleged infringement by SALUS BALEARES of Article 5.1.f) of the GDPR, which results in the imposition of a proposed sanction of €20,000.00 (TWENTY THOUSAND EUROS).

Thus:

Regarding the aggravating circumstances of Article 83.2.a) GDPR

In this regard, SALUS BALEARES considers that the specific case reported by the claimant and the specific circumstances of the Asistel Moraira clinic have not been taken into account, but rather the Agency has considered the overall data of the CMSB company.

Furthermore, SALUS BALEARES notes that, regarding confidentiality, as argued in point I of this appeal, there has been no processing of data; the claimant never measured their temperature, so there can be no confidentiality regarding an event that did not occur.

Regarding the number of interested parties, SALUS BALEARES reminds this Agency that during the pandemic period caused by the COVID-19 virus, in our country, the entire healthcare sector, including private healthcare such as that of CMSB, was made available to all citizens, as requested by the Spanish Minister of Health, Salvador Illa, on March 15, 2020. Joining forces, resources, and energies to be able to attend to as many cases as possible and help overcome the COVID-19 crisis.

SALUS BALEARES brings to attention that the health authority, the Ministry of Health or agencies to which it delegates, published various protocols that include, as a necessary safety measure for the return to normality of these activities, the aforementioned temperature controls. For example, the Protocol for action for the reactivation of judicial activity and professional health, from the General Council of the Judiciary, the Basic protocol for action for the return to training and the resumption of federated and professional competitions; or in the Recommendations for the restoration of activity in public swimming pools after the COVID-19 crisis. It also recalls that the Spanish Government itself, in managing this emergency situation and, specifically, regarding the measures imposed on foreigners visiting Spain during the period that this situation lasted, carried out temperature checks on every person entering the country, with the aim of ensuring maximum health safety. Because this is what SALUS BALEARES sought at all times, to prevent the spread of the COVID-19 crisis, which is why the body temperature reader was installed.

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Indica SALUS BALEARES that, in a more specific manner, the reported action was carried out in compliance with Law 31/1995, of November 8, on the Prevention of Occupational Risks (LPRL), which states that it is the employer's obligation to ensure safety at work. This latter obligation of the employer must be understood in a broad sense, so the mere circumstance that the employees of the medical clinic Asistel Moraira of SALUS BALEARES work in contact with clients and users implies the necessity for the protection provided to employees to be extendable to clients or users, as access to the facilities of SALUS BALEARES by infected clients or users could jeopardize the safety of employees and that of the users themselves among each other. Furthermore, the failure to act in compliance with the obligations to protect workers derived from the LPRL could constitute a crime, as regulated in Articles 316-318 of the Penal Code.

SALUS BALEARES reminds that this opinion is ratified by the Ministry of Health in the document it has prepared regarding the "Procedure for action for occupational risk prevention services against exposure to SARS-CoV-2," which makes the following recommendation to occupational risk prevention

services on page 3:

"Given that contact with the virus can affect both healthcare and non-healthcare environments, it is the responsibility of companies to assess the risk of exposure that workers may encounter in each of the differentiated tasks they perform and to follow the recommendations issued by the prevention service, adhering to the guidelines and recommendations formulated by health authorities."

Furthermore, SALUS BALEARES states that the proposed sanction does not reflect what criteria this Agency has established to determine that the number of affected individuals is high, especially if they do not know the number of clients received at the Asistel Moraira clinic, no further complaints have been submitted in this regard, and considering that the total number of registered citizens in Teulada, the municipality where the clinic in question is located, is 11,944 inhabitants (according to INE data 2022).

It is for this reason that we believe this aggravating criterion has not been calculated objectively, in accordance with the reported facts.

"Article 83.2.b) GDPR. Intentionality or negligence in the infringement: While it is considered that there was no intentionality on the part of SALUS BALEARES, negligence can be observed in the compliance and observance of the technical and organizational measures to ensure the necessary safety for the protection of personal data, specifically to guarantee their confidentiality, since a temperature check of users attending the clinic was conducted in such a way that it was possible for others present in the waiting room or reception area to visualize it, which reflects negligence, especially considering that these are health data. In this regard, it should be remembered that SALUS BALEARES is a clinic and therefore,

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accustomed to the processing of personal data, specifically health data.

It is worth recalling, in this regard, the ruling of the National Court dated 17/10/2007 (rec. 63/2006), which regarding entities whose activity involves the continuous processing of customer data, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be emphasized that rigor and exquisite care must be taken to comply with the legal provisions in this regard."

SALUS BALEARES indicates that, in the cited aggravating circumstance, it refers to intent or negligence, and this Agency states in its writing that "it is considered that there was no intent on the part of SALUS BALEARES." Regarding negligence, it again relies on the lack of confidentiality, as has already been done in the application of the aggravating circumstance of Article 83.2.a) of the GDPR. We reiterate the proven facts that there has been no data processing; the claimant never measured their temperature, therefore it is not a processing of personal data, the GDPR and other regulations do not apply to it, and in the case at hand, it is factually impossible for confidentiality to exist regarding a fact that did not occur, such as the temperature measurement of the claimant's hand.

For all these reasons, we consider that the aggravating circumstance of negligence applied in the grading of the sanction is not applicable.

"Article 83.2.g) GDPR. Categories of personal data affected by the infringement: Personal data related to health has been affected.

It is necessary to recall at this point that the measurement system used is a laser thermometer located at the entrance of the clinic, where the user individually takes their temperature, without carrying out any type of temperature recording or identifying data of that user. That is to say, laser thermometers are used for temperature measurements without this process being accompanied by the recording of the temperature obtained from the users of the clinic."

SALUS BALEARES points out that, despite this Agency considering that body temperature is a health

data, the temperature measurement carried out (laser measurement of the forehead or hand) is NOT a processing of personal data, as has been previously proven. (Procedure No: E/03884/2020 AEPD: Metro de Bilbao)

SALUS BALEARES insists that there is no data processing, because as stipulated in the first articles of the GDPR, and more specifically in Article 2.1 regarding the material scope of application of this regulation, "This Regulation applies to the total or partial automated processing of personal data, as well as to the non-automated processing of personal data contained or intended to be included in a file."

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SALUS BALEARES states that, following the description of the scope of application of the regulation, from its point of view, there is no automated processing of personal data, nor is there non-automated processing intended to be included in a file, understanding this concept as "any structured set of personal data, accessible according to determined criteria, whether centralized, decentralized, or distributed functionally or geographically," in accordance with Article 4 of the GDPR, sixth point. For this reason, this action should fall outside the scope of application of data protection regulations. Furthermore, SALUS BALEARES asserts that, regardless of whether the situation should be located under the protection of data protection regulations or not, due to the existence or non-existence of automated or non-automated processing, according to the material scope of application, it can also be argued that, in this specific case, the use of the information necessary to fulfill the purpose of temperature control, as implemented by SALUS BALEARES, does not constitute personal data if we consider the definition that the GDPR itself offers on this concept in the first point of Article 4, when it stipulates that personal data shall be "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Indeed, SALUS BALEARES indicates that the first part is divided into 4 well-differentiated elements, which the now-defunct Article 29 Working Party (WP29) had already analyzed separately:

"Information" + "About" + "Natural person" + "Identified or identifiable."

In the opinion of SALUS BALEARES, in the case at hand, the verification of temperature meets the first 3 elements, but not the one indicated fourth. That is to say, of course, that the measurement of temperature may be associated with a natural person, but what will not be possible, according to the data collected by the clinic, will be to know the identity of that person, in a reasonable manner, as the WP29 itself established, since there is no collection or association with another direct or indirect identifier that allows knowing the identity of a person.

In these cases, according to the report on the concept of personal data issued by the WP29 back in 2007, we will simply find ourselves with anonymous data that do not require the protection of privacy legislation, for the simple fact that this latter right will not be affected.

Additionally, SALUS BALEARES notes that this line of argument it defends has been taken by various Data Protection Authorities in the European Union:

"CNIL (France): Publicly acknowledges that regulations on data processing only apply to automated processing (in particular, IT) or to non-automated processing of personal data intended to be included in a file. Therefore, it concludes that if there was only verification of..."

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the temperature using a manual thermometer (such as, for example, a non-contact infrared type) at the

entrance of a site, without leaving a trace, nor any other operation that is carried out (such as feedback of information, etc.), this situation does not fall under data protection regulations.

This statement can be consulted at the following link:

<https://www.cnil.fr/fr/la-cnil-appelle-la-vigilance-sur-lutilisation-des-cameras-ditesintelligentes-et-des-cameras>

Autoriteit Persoonsgegevens (Netherlands):

In the same vein, the Dutch Data Protection Authority acknowledges that the GDPR is not applicable to situations where only the temperature is read, without it being recorded or stored in an automated system, as is applicable to the present action for which a complaint has been received. It does leave open the situation that such control may affect other rights, but not the right to data protection in this case.

This statement can be consulted at the following link:

<https://autoriteitpersoonsgegevens.nl/nl/onderwerpen/corona/temperaturen-tijdens-corona>

SALUS BALEARES concludes that, although body temperature may be a health data, it does not constitute personal data as such, since it does not identify the data subject, and therefore the current regulations on data protection would not apply, nullifying the application of this aggravating factor of the proposed sanction.

Article 76.2.b) LOPDGDD. Linkage of the infringer's activity with the processing of personal data: The development of the business activity carried out by SALUS BALEARES involves continuous processing of personal data, many of which are health-related. Therefore, it is a company accustomed to processing personal data.

Regarding this last aggravating factor, SALUS BALEARES points out that once again the activity of the entire group has been taken into account and not the specific activity of the clinic Asistel Moreira, where the alleged data protection infringement supposedly occurred, as argued above, disputing the application of the aggravating factor of Article 83.2.a) GDPR by considering the number of affected data subjects to be high, when it is not.

The total number of patients at the Asistel Moreira clinic in all of 2022, the year in which the complaint was made, was 2,375 people.

III.- Regarding the AGREEMENTS to initiate the sanctioning procedure

SALUS BALEARES argues that the Initiation Agreement shows a procedural defect, which leads to the annulment of all or part of the proposed sanction, as it is agreed to duplicate the initiation of sanctioning proceedings against it for the alleged infringement of Article 5.1.f), proposing an administrative fine of 20,000.00 euros (TWENTY THOUSAND EUROS), thus failing to comply with the principle of

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Procedural Law NON BIS IN IDEM. This principle establishes the prohibition of punishing the same act multiple times when there is identity of subject, facts, and grounds, as is the case at hand, where CMSB is sought to be punished twice with a fine of 20,000.00 euros (TWENTY THOUSAND EUROS) for the same alleged breach. Therefore, it requests this Agency to annul the proposed sanction or recalculate its value.

SALUS BALEARES also indicates that, in reference to the proposed sanction of 10,000.00 euros (TEN THOUSAND EUROS) for the alleged infringement of Article 32 of the GDPR, it is brought to the attention of this Agency that in file EXP202202309 no sanctioning procedure has been initiated against SALUS BALEARES due to the infringement of Article 32 of the GDPR, which is why it requests that the present sanctioning procedure be declared null and void, as according to the provisions of administrative procedural regulations, a sanction proposal cannot be made without having initiated an administrative sanctioning procedure.

For the reasons stated, SALUS BALEARES requests that the file related to the present claim be closed, declaring the present sanctioning procedure null due to formal defects and rendering the

sanction proposals ineffective.

SEVENTH: On January 15, 2024, a Proposal for Resolution was formulated, proposing that the Director of the Spanish Agency for Data Protection sanction CENTRO MÉDICO SALUS BALEARES, S.L., with NIF B07060478, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of 20,000.00 euros (TWENTY THOUSAND EUROS), and for an infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, with a fine of 10,000.00 euros (TEN THOUSAND EUROS).

EIGHTH: The aforementioned Proposal for Resolution was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the party being claimed submitted a written statement of allegations in which, in summary, it states the following:

First. – THE AEPD HAS NOT PROVEN ANY FACT THAT CONSTITUTES AN INFRINGEMENT BY CMSB AND THE IMPOSITION OF THE PROPOSED SANCTIONS.

SALUS BALEARES alleges that the proposed sanction is based on insufficient evidence. The administrative file only contains a photograph taken by the complainant.

SALUS BALEARES understands that the proposal for resolution lacks sufficient evidence to undermine the presumption of innocence. The eventual resolution that is issued based on the evidence in the administrative file is considered by SALUS BALEARES to be null and void due to being manifestly unmotivated, indicating the following reasons:

1. The proposal for resolution considers the facts constituting the infringement attributed to SALUS BALEARES to be proven solely on the basis of the photographs provided by the complainant.
2. The AEPD has not conducted any verification regarding the reality and date of the photographs taken.
3. Likewise, the AEPD has not carried out any evidentiary activity in the processing of the administrative file for the imposition of the sanction on SALUS BALEARES. That is, it has not visited the premises of my client to verify the reality that is allegedly indicated in the photographs.
4. From the images provided by the complainant, the AEPD infers the following proven facts:
 - The clinic uses an electronic device to measure temperature using a proximity sensor.
 - The device is located in the waiting room and at the reception of the clinic.
 - The temperature of the person is displayed on the thermometer screen.

However, in the opinion of SALUS BALEARES, these are facts that do not undermine its presumption of innocence.

Second. – SALUS BALEARES HAS NOT PROCESSED THE COMPLAINANT'S DATA.

SALUS BALEARES reiterates that, within the process of taking the complainant's temperature, there was no processing of personal data. At no time did events arise that made this user identifiable, all based on the following objective circumstances:

1. The complainant did not undergo the temperature measurement.
2. The temperature measurement was carried out using a device that measured temperature without recording, therefore, none of the measurements were stored.
3. The device was located on a wall next to the reception, where the right side includes ornamental elements to prevent the result of the measurement from being visible from the right side. Additionally, the temperature measurement was performed by bringing the person's hand close to the device. Therefore, the device's screen was covered both by the hand of the person taking the temperature and by the person's own body.
4. Likewise, the mandatory distance that had to be maintained between individuals did not allow for the visualization of this data except for the person whose temperature was being taken.
5. All personnel in the facilities were required to wear masks (including patients who were having their temperature taken).

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6. The notice to patients for accessing the consultation is not carried out using personal data. The call to clients is made with a code, maintaining their anonymity at all times.

In this regard, SALUS BALEARES claims that in the case of checking body temperature as a preventive measure against the spread of COVID-19, none of the following operations contemplated by the GDPR in its Article 4, which defines what is understood by "processing" of personal data, were carried out:

- Registration: body temperature was not recorded in any type of system or device, automated or non-automated.
- Structuring: the information was not structured as no processing of personal data was carried out.
- Modification: the information was not changed or altered.
- Conservation: the information was not stored for a certain period of time.
- Extraction: the information was not obtained from an original system or device for its sending or transfer to another system or device.
- Dissemination: the data was not ceded or communicated to a person other than the interested party.
- Communication by transmission: the data was not sent to another recipient from its origin system or device through electronic means.
- Comparison: the data from two or more treatments or systems were not analyzed to establish similarities and differences and develop some type of assessment.
- Limitation: it was not applicable since the device did not store data nor carried out any further processing.
- Communication: due to existing measures and the placement of the device, no data was revealed to a person other than the interested party.

Third. – ANY POTENTIAL DATA PROCESSING WAS SECURE. AT ALL TIMES, THE INDICATIONS OF THE LOPD AND THE REGULATION WERE RESPECTED.

SALUS BALEARES states that it applied the necessary measures to ensure the confidentiality of the temperature data, taking into account the provisions of Article 32 of the GDPR, which advocates that "the technique, the costs of application, and the nature, scope, context, and purposes of the processing, as well as risks of varying probability and severity for the rights and freedoms of natural persons."

SALUS BALEARES indicates that the measurement was taken within the clinic's facilities. And, within the clinic, in a location of individual access for clients. That is, at no time could another client/patient observe the temperature indicated by the thermometer.

Furthermore, SALUS BALEARES states that, at that time, the clinic did not have the necessary personnel to solely assume the function of controlling the temperature of users, nor did the facilities have a contiguous space that could allow for individual temperature measurement while also enabling staff to control the protocols of action against COVID.

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Fourth. – THE ISOLATED TEMPERATURE DATA COULD NOT REVEAL THE IDENTITY OF THE PERSON.

SALUS BALEARES argues that, regarding the temperature data, although it is considered a health data, at the time of taking the temperature, the potential users of the facilities could not have the necessary information that linked this data with others that would make the person who proceeds to take the temperature identifiable.

SALUS BALEARES indicates that to interpret the concept of "information relating to an identified or identifiable natural person," we must refer to Recital 26 of the GDPR, which states:

"[...] to determine whether a natural person is identifiable, all means, such as singling out, that may reasonably be used by the data controller or any other person to identify the natural person directly or indirectly must be taken into account. To determine whether there is a reasonable likelihood that

means will be used to identify a natural person, all objective factors must be considered, such as the costs and time required for identification, taking into account both the technology available at the time of processing and technological developments.”

Based on the above, SALUS BALEARES understands that it was not possible to identify the users whose temperature was taken. In fact, this party cannot identify the individuals appearing in the photograph provided by the complainant.

Sixth. – THE CONTEXT OF HEALTH CRISIS HAS NOT BEEN TAKEN INTO ACCOUNT

SALUS BALEARES recalls the moment and circumstances in which these events occurred, as exceptional as a global pandemic. The healthcare sector was the most affected. Security measures such as temperature checks were essential to ensure the health of all users who could access the clinic—both internal staff and patients. The AEPD itself has taken this into account in previous resolutions.

For the reasons stated, SALUS BALEARES requests that the proceedings be archived, understanding that it has not committed any infringement. And subsidiarily, it requests that the circumstances of the global health crisis in which SALUS BALEARES allegedly committed the infringements be taken into account and that any potential sanctions imposed be mitigated.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It has been established, through the photos provided by the complainant, the following:

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- In the clinic, an electronic device is used that automatically measures temperature, requiring users to position themselves close to and in front of it.
- The device was located on a wall in an area where the waiting room and reception of the clinic are situated.
- The result of the body temperature was displayed on the device's screen for several seconds, which, when the person moved away from it, allowed it to be visible to third parties present there.

SECOND: SALUS BALEARES, in its written response to the transfer of the complaint and request for information, submitted on March 28, 2022 (Registration Number: REGAGE22e00009701065), states the following:

"The measurement system used is a laser thermometer located at the entrance of the clinic, where the user individually takes their temperature and the admission staff of the medical clinic observes this measurement, without carrying out any type of temperature recording or identifying data of said user. That is to say, laser thermometers are used for temperature measurements without this process being accompanied by the recording of the temperature obtained from the clinic's users."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Regarding the temperature measurement of individuals as part of the measures adopted in workplaces to help prevent the spread of the COVID-19 pandemic, it is considered necessary to highlight that the body temperature of individuals is a health data in itself, according to the definition contained in Article 4, paragraph 15, of the GDPR.

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According to Article 4 of the GDPR, paragraphs 1 and 2, "personal data" shall mean:

"any information relating to an identified or identifiable natural person"; and "processing": "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, or combination, restriction, erasure, or destruction."

Based on the above, temperature checks of individuals may constitute processing of health data relating to an identified or identifiable natural person, and as such must comply with one of the legal bases listed in Article 6 of the GDPR and meet one of the specific exceptions outlined in Article 9 of the GDPR.

In general, the employer has the obligation to ensure the safety and health of the workers in their service in aspects related to work, as derived from Articles 14 and following of Law 31/1995, of November 8, on the Prevention of Occupational Risks. This obligation operates simultaneously as an exception that allows the processing of health data, under the circumstances provided for in Article 9.2.h) of the GDPR, and as a legal basis that legitimizes the processing, as the processing is necessary for compliance with a legal obligation imposed on the employer (Article 6.1.c) of the GDPR). There is no doubt that in a public health crisis situation such as that caused by COVID-19, the employer is obliged to adopt extraordinary measures aimed at preventing further infections, and these measures must be applied according to the criteria defined by health authorities.

In the context of companies, the Ministry of Health, in its document "Procedure for action for occupational risk prevention services in the face of exposure to SARS-CoV-2," indicates that "The intervention of companies, through prevention services (SPRL), in response to exposure to SARS-CoV-2 has been and is crucial, adapting their activity with updated recommendations and prevention measures (...) with the general objective of limiting infections: organizational measures, collective protection, personal protection, especially vulnerable worker measures and risk level, study and management of cases and contacts occurring in the company, and collaboration in the management of temporary incapacity" and adds that "companies, through prevention services, are called to collaborate with health authorities in the early detection of all cases compatible with COVID-19 and their contacts, to control transmission."

In this context, it should be understood that the control of the body temperature of workers carried out by employers, as a measure to allow access to workplaces in order to limit infections, given that fever is a symptom of the disease caused by SARS-CoV-2, as part of a broader set of measures that include preventive, hygiene, protective measures, etc., meets the criteria indicated by health authorities.

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In the case examined, SALUS BALEARES, in accordance with the indicated criteria, states that it conducts body temperature checks on its workers to comply with its obligations regarding health and safety. Consequently, based on the reasoning provided, this processing of health data of workers finds its legitimacy in the grounds set forth in Article 6.1.c) of the GDPR and in the exceptions that allow the

processing of health data, as outlined in Article 9.2.h) of the GDPR.

III

In relation to the temperature checks of users accessing an establishment, temperature checks of individuals may constitute the processing of health data relating to an identified or identifiable natural person, and as such must comply with one of the legal bases listed in Article 6 of the GDPR and meet one of the specific exceptions mentioned in Article 9 of the GDPR.

To determine whether, in a specific case, there has been processing of data of an identified or identifiable person, one must consider the type of device used and take into account other circumstances of the temperature-taking process that may make the person identifiable, such as whether the body temperature is recorded or not, or whether the temperature is taken in public establishments in a manner that allows the affected person to be identified by third parties.

In the body temperature checks carried out at the entrance of public establishments to measure the temperature of visitors or customers, manual temperature measurement devices are typically used, such as a manual thermometer that is solely designed to take body temperature.

When these temperature checks are not accompanied by an identity check of the individuals seeking to access the establishment, that is, when the temperature measurement is not linked to a specific person through its recording or notation, such measures would not, in principle, fall within the scope of the GDPR as the temperature is not associated with an identified or identifiable person.

However, denying access or assistance to a person due to their temperature may reveal to third parties, who have no justification for knowing it, that the person who has been denied entry has a body temperature above what is considered non-relevant and, above all, that they may be infected with the virus, given that fever is a symptom of the disease caused by SARS-CoV-2.

Furthermore, if the temperature is taken in such a way that the result is visible or public, it also means that it is disclosed to third parties. Therefore, it is necessary to establish in each case whether the specific circumstances that occurred during the temperature-taking process of a particular person led to events that made them identifiable.

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In the case examined, as evidenced by photographs provided by the claimant, an electronic device is used that automatically measures temperature, requiring users to stand close to and in front of it. This device is located on a wall near the waiting room and next to the reception of the clinic, displaying the body temperature on the front of the device, which is perfectly visible to people in that room, as well as to those accessing and present in the reception area of the establishment.

The personal data of temperature is a health data in itself. Likewise, in the event of having a high temperature, it also presupposes the existence of an illness and, in the context and moment in which it is taken, the possible existence of the illness caused by SARS-CoV-2, which is undoubtedly also health data and is being disclosed publicly to third parties regarding identified or identifiable individuals.

IV

Allegations to the Initiation Agreement

In response to the allegations presented by the entity being claimed, the following should be noted:

I. Regarding whether temperature measurement constitutes a processing of personal data.

The defendant claims that, as stated by the Agency itself in the Initiation Agreement, when temperature checks are not accompanied by an identity check of the individuals attempting to access the establishment, that is, when the temperature measurement is not linked to a specific person through their registration or notation. SALUS BALEARES adds that this same criterion is followed by the Agency in other proceedings, such as E/03884/2020, in which it has been determined that measuring temperature through thermometers without recording the interested parties does not constitute processing of personal data.

In response, it should first be noted that what was precisely stated by this Agency in the Initiation

Agreement of the present sanctioning procedure is what has been transcribed in Fact Finding III, reproducing again some of the paragraphs to which the defendant literally refers:

“When these temperature checks are not accompanied by an identity check of the individuals attempting to access the establishment, that is, when the temperature measurement is not linked to a specific person through their registration or notation, such measures would not, in principle, fall within the scope of the GDPR as the temperature is not associated with an identified or identifiable person. However, denying access or assistance to a person due to their temperature may reveal to third parties who have no justification for knowing it that the person who has been denied entry has a...”

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body temperature above what is considered irrelevant and, above all, that may be infected with the virus, given that fever is a symptom of the disease caused by SARS-CoV-2. Likewise, if the temperature is taken in such a way that the result is visible or public, it also means that it is disclosed to third parties. Therefore, it is necessary to establish in each case whether the specific circumstances that occurred during the temperature measurement of a particular person led to events that made them identifiable.

In the case examined, as evidenced by photographs provided by the claiming party, an electronic device is used that automatically measures temperature, requiring users to position themselves close to and in front of it. This device is located on a wall near the waiting room and next to the reception of the clinic, displaying the body temperature on the front of the device, which is perfectly visible to people in that room, as well as to those who access and are in the reception area of the establishment” (the underlining is ours).

On the other hand, in file E/03884/2020, which the respondent brings up to argue that as long as no record of the interested parties is made when taking the temperature, there is no data processing, the following is stated:

- This file refers to the measurement of body temperature of users of the Bilbao metro using thermal cameras without recognition and without recording, which allowed for temperature measurement without identification, without recording, and without data registration of individuals as their identification was not required. These data were displayed in real-time and only to healthcare personnel.

- It was expressly indicated in this file that:

“To determine whether in a specific case there has been data processing of an identified or identifiable person, one must consider the type of device used and take into account other circumstances of the temperature measurement process that may make the person identifiable, such as whether or not the body temperature is recorded or whether the temperature measurement in establishments open to the public is done publicly, in such a way that the affected person can be identified by third parties.”

(...)

In the case examined, thermal cameras and manual thermometers are used for temperature measurements without this process being accompanied by the recording of the temperature obtained from metro users. There has also been no evidence of special circumstances that would allow linking the aforementioned processing to an identified or identifiable person.

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- And finally, this Agency decides to archive the proceedings based on the fact that: “according to the reasoning provided, it is not appreciated in this case that the data processing carried out refers to identified or identifiable natural persons, thus being excluded from the scope of application of the GDPR.” (the underlining is ours).

Therefore, both in what was indicated in Legal Basis II of the Initiation Agreement of the present sanctioning procedure and which is also reproduced in this resolution proposal, as well as in the case of file E/03884/2020, it is emphasized not only that the temperature is not subsequently recorded with the identification of the interested parties, but also that the data must not be accessible to unauthorized third parties, and in the case of the Bilbao Metro, only authorized healthcare personnel can see the result of the body temperature, without the rest of the metro users being able to visualize the body temperature displayed by the device. This means that the temperature measurement is carried out in such a way that it does not refer to identified or identifiable natural persons.

However, in the case at hand, it has been evidenced, through the photographs provided by the complainant, that the body temperature detected by the device is perfectly visible to other people who are in the waiting room and in areas close to the reception, which allows linking the personal data (the temperature) with an identified or identifiable person, since at the very moment a person takes their temperature, the result is visible to the other people present in the waiting room or in the reception area of the clinic.

Therefore, we would indeed be dealing with a personal data related to an identified or identifiable person, as the body temperature data is visible to third parties precisely when the person is directly taking their temperature at that same moment. That is to say, unauthorized third parties are seeing both the specific temperature and the person to whom that temperature belongs. And that makes them perfectly identified or identifiable.

Thus, in Opinion 4/2007 on the concept of personal data from the Article 29 Working Party (136WP), it is indicated that:

Generally speaking, a natural person can be considered “identified” when, within a group of people, they can be “distinguished” from all other members of the group. Consequently, a natural person is “identifiable” when, even if they have not yet been identified, it is possible to do so (which is the meaning of the suffix “ble”). Thus, this second alternative is, in practice, the sufficient condition to consider that the information falls within the scope of application of the third component. (pg. 12)

This method of temperature measurement as it has been carried out represents a particularly intense interference in the rights of the affected individuals. On the one hand, because it affects data related to the health of individuals, not only because the value of body temperature is a health data in itself.

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nor because, from it, it is assumed that a person suffers from or does not suffer from a specific illness, as is the case here with the coronavirus infection.

On the other hand, regarding the claims made by SALUS BALEARES that the device is located on a wall next to the reception, where there are ornamental elements to prevent the measurement result from being visible, it is noted, firstly, that in the photographs provided by the claimant, it is clearly evident that from the position where he is (waiting room area), the measurement device and the result it yields are clearly visible, as the ornamental element is on the other side and does not obstruct visibility in any way. Secondly, it is not acceptable to consider that the ornamental element, consisting of a plant in a medium-sized pot, located in a corner on top of the reception desk, can be regarded as an appropriate technical or organizational measure to ensure adequate security, specifically to guarantee the confidentiality of personal data, not only because it is inappropriate in itself, but also because, as can be seen from the photos, it is easy to position oneself on the other side of the desk (and on the other side of the plant) to perfectly visualize the result yielded by the temperature measurement device.

Furthermore, the respondent indicates that when the measurement is taken by bringing the hand close, just a few centimeters from the device, the body of the person visually obstructs the result, making it practically impossible for the temperature measurement to be visible to anyone other than herself. However, contrary to this claim, the photos provided show that the result yielded by the device (the body temperature) remains on its screen for several seconds, as it can be seen in the photos that

the person (a woman) taking her temperature is later seen in another photo away from the device, and yet the temperature displayed is still visible on it.

On the other hand, SALUS BALEARES claims that the present case has not been examined thoroughly by the Agency, as there is no record of any inspection visit to the clinic in question, where it was examined or reviewed whether the photographs taken were a true reflection of reality.

In this regard, the photos provided by the claimant clearly reflect the facts. Furthermore, the respondent itself has used one of the photos provided by the claimant to assert the existence of the ornamental plant as a protective measure against the visibility of the thermometer, describing the situation of it and the taking of the body temperature of users according to that photo. Additionally, SALUS BALEARES, as indicated in the Second Proven Fact, in its response to the transfer of the complaint and request for information directed by this Agency, expressly stated that "The measurement system used is a laser thermometer located at the entrance of the clinic, where the user individually takes their temperature and the clinic's admission staff observes this measurement, without carrying out any type of temperature recording or identifying data of that user. That is to say, laser thermometers are used for temperature measurements without this process being accompanied by the recording of the temperature obtained from the clinic's users."

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For the reasons stated, both from the photographs and the statements of SALUS BALEARES, it has been perfectly established the circumstances under which the temperature measurement of individuals accessing the clinic is conducted.

SALUS BALEARES argues that the photographs do not prove that the claimant underwent a measurement, as they do not show the moment when the interested party (claimant) has their temperature taken, and that according to what the claimant stated in their complaint, they did not proceed to have their temperature measured, which is why they were not allowed to access the center, and this implies that there has been no processing of their personal data.

In response, it should be clarified that the processing of personal data that is understood to violate data protection regulations does not refer to the processing carried out or not carried out regarding the specific claimant, as they did not consent to having their temperature taken, but rather to the manner in which the clinic takes the temperature of all individuals who access it. That is to say, it refers to the processing carried out regarding the temperature measurement of all individuals accessing the clinic.

II. Regarding the quantification of sanctions

SALUS BALEARES states that it does not agree with the circumstances that have been considered as aggravating factors for the sanction indicated in the Initiation Agreement.

Thus, SALUS BALEARES indicates that, concerning Article 83.2.a), it has been considered that the nature of the infringement is serious because it entails a loss of confidentiality and, therefore, of disposition and control over personal data, but that, however, there was no processing of data because the claimant never measured their temperature, and therefore no confidentiality could have been breached.

In response, as noted in the previous point, the present sanctioning procedure has not been initiated on the grounds that the confidentiality of the claimant's data has been breached, but because the confidentiality in the temperature measurement of individuals accessing the clinic has been violated, as the result of that temperature was visible to other individuals who might be present there, that is, to unauthorized third parties.

Furthermore, SALUS BALEARES points out that, regarding the number of affected individuals, this Agency has not indicated the criteria for determining that the number of affected individuals is high, as it does not know the number of clients received at the clinic and no other complaints have been submitted.

In response, it should be recalled that it cannot be considered that the affected individuals have been few or isolated, as the temperature measurement under the indicated circumstances has been carried

out over the long period during which it was mandatory as a preventive measure during the pandemic caused by the COVID-19 virus. Moreover, the respondent itself in its written allegations to the Initiation Agreement expressly acknowledges that the number of patients at the Asistel Moraira clinic in all of 2022, the year in which the complaint was made, was 2,375 individuals, a considerable number of people.

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Regarding the recommendation for temperature taking in accordance with the health regulations established by the competent health authorities, as well as by the Occupational Risk Prevention Law concerning its employees, it is noted that, as indicated in the First Legal Basis of the Initiation Agreement and which is reproduced again in the First Legal Basis of the present proposal to which reference should be made, the taking of temperature as a protective measure against COVID-19 is legitimized. That is to say, it has not been questioned that the processing is lawful and can be carried out. However, the existence of legitimacy for the processing does not preclude the requirement that it must be conducted in compliance with the other obligations and requirements imposed by the data protection regulations, among which, especially, is the guarantee of the confidentiality of the personal data processed.

In relation to the application of Article 83.2.b) of the GDPR, SALUS BALEARES disagrees with the application of the existence of negligence as it insists that there was no processing of personal data, since the claimant never had their temperature measured.

It also indicates that the aggravating factor of Article 83.2.g) of the GDPR, related to the category of affected data, which in this case would be health data, cannot be applied for the same reason that there has been no processing of personal data, as determined in file E/03884/2020.

In this regard, it is appropriate to refer to the arguments made in this Legal Basis regarding the processing of data that the taking of body temperature carried out by the respondent entails, especially the fact that, in this case, since the result of the body temperature is visible to other people who may be in the area at the same time a person takes their temperature, this means that the individual is identified or identifiable. Therefore, contrary to what the respondent claims, we would indeed be in the situation described in the definition of personal data in Article 4 of the GDPR, paragraphs 1 and 2, according to which "personal data" is understood as: "any information relating to an identified or identifiable natural person"; and "processing": "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, comparison or interconnection, restriction, erasure or destruction."

Therefore, body temperature is a personal data, specifically a health data, and, in accordance with the circumstances under which the temperature is taken in the respondent's premises (in a manner visible to other people present in the area where the measurement is conducted), it is information collected regarding an identified or identifiable natural person.

Finally, SALUS BALEARES points out, regarding the aggravating factor of Article 76.2.b) of the LOPDGDD, related to the link between the infringer's activity and the performance of personal data processing, that the activity of the entire group has been taken into account and not the specific activity of the Asistel Moraira clinic, where the alleged data protection violations have supposedly occurred.

However, it notes
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SALUS BALEARES states that the number of patients at the Asistel Moraira clinic throughout 2022,

the year in which the claim was made, was 2,375 individuals.

In this regard, it is noted that the aggravating factor refers to the fact that the activity carried out by the respondent involves continuous processing of personal data (not only concerning temperature measurement but also regarding the healthcare services provided, medical records, etc.), which are also health-related data, meaning that it is not a residual or sporadic processing, which requires greater diligence on the part of the respondent, regardless of the specific number of patients that one of its clinics received in a year.

III. Formal Defects in the Initiation Agreement that Render it Null

SALUS BALEARES alleges that the principle of non bis in idem has been violated, which prohibits the same act from being sanctioned multiple times.

In this regard, it is necessary to explain the difference between the violation of Article 5.1.f and Article 32 of the GDPR.

Article 5.1.f) of the GDPR is violated when there is a loss of confidentiality, integrity, or availability of personal data, which may or may not occur due to the absence or deficiency of security measures. This principle merely determines the channel through which the maintenance of confidentiality, integrity, or availability can be achieved when it explicitly states "through the application of appropriate technical and organizational measures," which are not strictly security measures.

The appropriate technical and organizational measures referred to in Article 5.1.f) of the GDPR are not the security measures of Article 32 of the GDPR. This would simplify the essence of the GDPR, whose compliance is not limited to the implementation of technical and organizational security measures; it would mean reducing the guarantee required by the principle of integrity and confidentiality to its achievement solely through security measures.

It should be noted that there are multiple technical or organizational measures that are not security-related and that the data controller can implement as a means to guarantee this principle. However, Article 32 of the GDPR encompasses the obligation to implement appropriate technical and organizational security measures to ensure a level of security appropriate to the risk. Security measures. Only security measures.

Furthermore, its objective is to ensure a level of security appropriate to the risk, while in the case of Article 5.1.f) of the GDPR, confidentiality and integrity must be guaranteed. As can be seen, the two articles pursue different objectives, although they may be related.

Delving into the examination of non bis in idem, the Judgment of the National Court of July 23, 2021 (rec. 1/2017) states that,

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"(...) According to the legislation and jurisprudence presented, the principle of non bis in idem prevents punishing the same individual twice for the same act based on the same grounds, understood as the same legal interest protected by the sanctioning norms in question. Indeed, when there is a triple identity of subject, act, and grounds, the accumulation of sanctions creates a penalty that is foreign to the proportionality assessment carried out by the legislator and materializes the imposition of a sanction not legally provided for, which also violates the principle of proportionality.

However, for "bis in idem" to be applicable, there must be a triple identity among the compared terms: objective (same facts), subjective (against the same subjects), and causal (for the same grounds or reason for punishment):

a) The subjective identity implies that the affected subject must be the same, regardless of the nature or judicial or administrative authority judging the case and irrespective of who the accuser is or the specific body that has resolved, whether judged alone or in conjunction with others affected.

b) The factual identity implies that the judged facts must be the same, and excludes cases of real concurrence of infractions where there are not the same unlawful act but several.

c) The identity of grounds or causal identity implies that the sanctioning measures cannot coexist if they respond to the same nature, that is, if they share the same teleological foundation, which occurs

between criminal and administrative sanctions, but not between punitive and merely coercive measures.”

Taking into account the aforementioned, the principle of non bis in idem has not been violated, since the infringement of Article 5.1.f) of the GDPR corresponds to a clear loss of confidentiality, while the infringement of Article 32 of the GDPR is limited to the absence and inadequacy of appropriate security measures (only security).

In light of all this, it is not considered that there is a violation of the principle of non bis in idem, enshrined in Article 25 of the Spanish Constitution.

Finally, SALUS BALEARES argues that in the Initiation Agreement a sanction of 10,000 euros is indicated for an infringement of Article 32 of the GDPR, but that, nevertheless, this Agency has not initiated any sanctioning procedure in the present file against it based on the infringement of Article 32 of the GDPR, and therefore requests the annulment of the procedure.

In this regard, it should be noted that in the Initiation Agreement of the present sanctioning procedure, in the Legal Grounds VII, VIII, and IX, it clearly indicates the facts, the infringement they imply (infringement of Article 32), the classification of the infringement (Article 83.4 of the GDPR), as well as the sanction that may be imposed for it. Likewise, in the dispositive part of the same, it is clearly indicated that a sanctioning procedure is initiated against SALUS BALEARES for violation of Article 32 of the GDPR, classified in Article 83.4 of the GDPR, and that the sanction could entail a fine of 10,000 euros.

For the reasons stated, the Initiation Agreement does not suffer from any cause of nullity or annulability.

In conclusion, all allegations made are dismissed.

V

Allegations to the Proposal for Resolution

In response to the allegations presented by the accused entity, the following should be noted:

First: The AEPD has not proven any fact that implies the commission of an infringement by SALUS BALEARES and the imposition of the proposed sanctions.

SALUS BALEARES again argues that the proposed sanction is based on insufficient evidence to overturn the presumption of innocence, as the administrative file only contains a photograph taken by the complainant and the AEPD has not carried out any evidentiary activity in the processing of the file, as it has not visited the premises to verify the reality allegedly indicated in the photographs.

In this regard, as already pointed out in the Proposal for Resolution, the complainant provided, along with their complaint, three photographs that are part of the file:

- In the first, a person (woman) is seen looking at the wall and placing her hand at a certain height.
- In the second photo, the same person is somewhat further away from the previous area and an electronic temperature measuring device is visible on the wall where the person was previously located, displaying a digital value (36.1) in red numbers.
- In the third photograph, the same person is somewhat further away, in the reception area, and the device continues to indicate the previous value (36.1).

In all the photographs, the reception area is seen very close (almost adjacent) to the right of the device. In two of them, another person (a man) is even visible in the reception area, who, by simply taking a step back, would be able to see the temperature displayed by the device.

In these photographs, as indicated in the First Proven Fact, the following facts are clearly reflected:

- In the clinic, an electronic device is used that automatically measures temperature, requiring users to stand close to and in front of it.

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- The device was located on a wall in an area where the waiting room and reception of the clinic are situated.
- The result of the body temperature was displayed on the device's screen for several seconds, which,

when the person stepped away from it, allowed it to be visible to third parties present there.

On the other hand, SALUS BALEARES has never denied the veracity of the photographs. In fact, in its response to the transfer of the complaint and request for information, submitted on March 28, 2022, it indicated the following:

"The measurement system used is a laser thermometer located at the entrance of the clinic, where the user individually takes their temperature, and the clinic's admission staff observes this measurement, without carrying out any type of temperature recording or identifying data of said user. That is to say, laser thermometers are used for temperature measurements without this process being accompanied by the recording of the temperature obtained from the clinic's users."

Furthermore, the respondent has used one of the photos provided by the complainant to assert the existence of the ornamental plant as a protective measure against the visibility of the thermometer, describing the situation of the thermometer and the taking of the body temperature of users according to that photo.

For the reasons stated, both from the photos and the statements of SALUS BALEARES, the circumstances of how the temperature is taken from individuals accessing the clinic have been perfectly established, making it unnecessary for this Agency to appear at the premises of the respondent to verify what is considered fully proven and accredited, and moreover, not contradicted by the respondent.

Second: SALUS BALEARES has not processed the complainant's data

Again, SALUS BALEARES claims that there was no processing of the complainant's personal data, as they did not undergo temperature measurement.

In this regard, as already indicated in the Proposal for Resolution, the processing of personal data that is understood to violate data protection regulations does not refer to the processing carried out or not carried out regarding the complainant specifically, since they indeed did not consent to having their temperature taken, but rather to the manner in which the clinic takes the temperature of all individuals who access it. That is to say, the processing carried out regarding the temperature measurement of all individuals accessing the clinic.

Additionally, SALUS BALEARES refers to several issues such as that temperature data is not recorded; that there are ornamental elements (a plant) to prevent the measurement result from being visible from the right side; that the mandatory distance to be maintained between individuals did not allow for the visibility of the data; that the screen of the measuring device was covered by the body of the person approaching to take their temperature; that all individuals had to access the facilities wearing a mask.

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In this regard, it is appropriate to refer to everything that has been answered and argued in the Proposal for Resolution. Thus, it was indicated, firstly, that in the photographs provided by the claimant, it is clearly evidenced that from the position in which he is (waiting room area), the measurement device and the result it yields are clearly visible, as the ornamental element is on the other side and does not obstruct visibility in any way.

Secondly, it is not appropriate to accept that said ornamental element, consisting of a medium-sized plant in a pot, located in a corner on top of the reception desk, can be considered a technical or organizational measure appropriate to ensure adequate security, specifically to guarantee the confidentiality of personal data, not only because it is inappropriate in itself, but also because, as can be inferred from the photos, it is easy to position oneself on the other side of the desk (and on the other side of the plant) to perfectly visualize the result that the temperature measurement device yields.

Furthermore, regarding the claim that when measuring by bringing the hand close, just a few centimeters from the device, the body of the person visually obstructs the result, making it practically impossible for the temperature measurement to be visible to anyone other than herself, it is noted, in contrast, that the photos provided show that the result yielded by the device (the body temperature)

remains on its screen for several seconds, as it can be seen in the photos that the person (a woman) who is taking her temperature is later seen in another photo away from the device, and yet the temperature displayed is still visible on it.

Fourth: The eventual processing of data was secure. At all times, the indications of the LOPDGDD and the GDPR were respected.

In this section, SALUS BALEARES fundamentally denies that at any time could patients see the temperature of another patient.

In response, it is appropriate to refer to what was stated in the previous section of this Legal Basis.

Fourth: From the isolated data of the temperature, the identity of the person could not be known.

The respondent again argues that, although the temperature data is health data, at the time of taking the temperature, potential users of the facilities could not have the necessary information that linked that data with others that would make the person taking the temperature identifiable, so it is not data related to an identified or identifiable natural person.

In response, as already indicated in the Proposal for Resolution, it has been evidenced, through the photographs provided by the claimant, that the body temperature detected by the device is perfectly visible to other people who are in the waiting room and in areas close to the reception, which allows linking the personal data (the temperature) with an identified person.

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o identifiable, since at the very moment a person has their temperature taken, the result is visible to the other people present in the waiting room or reception area of the clinic.

Therefore, we are indeed dealing with personal data related to an identified or identifiable person, as the data regarding body temperature is visible to third parties precisely when the person is having their temperature taken at that very moment. In other words, unauthorized third parties are directly seeing both the specific temperature and the person to whom that temperature belongs. This makes them perfectly identified or identifiable.

What seems to confuse the respondent is that a person being identifiable means being able to obtain their identifying data (name and surname), which is not the case.

In this regard, the Opinion 4/2007 on the concept of personal data from the Article 29 Working Party (136WP) states that:

Generally, a natural person can be considered "identified" when, within a group of people, they are "distinguished" from all other members of the group. Consequently, a natural person is "identifiable" when, even if they have not yet been identified, it is possible to do so (which is the meaning of the suffix "ble").

Thus, this second alternative is, in practice, the sufficient condition to consider that the information falls within the scope of application of the third component.

(pg. 12)

This treatment of taking temperature in the manner it has been conducted represents a particularly intense interference with the rights of the affected individuals. On one hand, because it affects data related to the health of individuals, not only because the value of body temperature is a health data in itself but also because, from it, it is assumed that a person suffers or does not suffer from a specific disease, such as in these cases the infection by coronavirus.

Fifth: The context of health crisis has not been taken into account

The respondent claims that the moment and circumstances in which these actions took place were as exceptional as a global pandemic. However, this has not been taken into account by the AEPD.

In this sense, it should be noted that both in the Initiation Agreement, as well as in the Proposal for Resolution, and in this Resolution, in its Legal Basis II, the situation of the pandemic caused by COVID-19 has been taken into account, precisely to justify the legality of the treatment of body temperature under the circumstances provided for in Article 9.2.h) of the GDPR and, as a legal basis that legitimizes the treatment, since it is necessary for compliance with a legal obligation imposed

(Article 6.1.c) of the GDPR).

However, once legitimized for the processing of the data in question, this does not in any way exempt compliance with the other obligations imposed by the GDPR, such as ensuring the confidentiality of personal data (Article 5.1.f) and adopting appropriate technical and organizational measures to ensure a level of security appropriate to the risk of processing (Article 32).

For the reasons stated, the allegations are dismissed.

VI

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures ('integrity and confidentiality')."

The taking of body temperature represents a particularly intense interference with the rights of the affected individuals. On one hand, because, as previously indicated, it affects data related to the health of individuals, not only because the value of body temperature is a health data in itself but also because, from it, it is assumed that a person may or may not suffer from a specific disease, such as in these cases the infection by coronavirus.

Therefore, the fact that, according to the applicable regulations in each case (health regulations or those related to occupational risk prevention), it may and/or must be legally required to control the body temperature of employees and users of an establishment does not mean that these data should not be processed in accordance with the principles and guarantees that protect the fundamental right to data protection.

Thus, temperature checks must be carried out in such a way that all guarantees and obligations established by data protection regulations are fulfilled.

In this case, the body temperature of users accessing the clinic is taken in such a way that it is susceptible to being visualized by anyone present in the waiting room and reception area, which means that it is revealing to third parties who have no justification for knowing that the affected person has a specific temperature. All of this constitutes a violation of the obligation to ensure the confidentiality of personal data.

For all the above reasons and in accordance with the available evidence, it is considered that the known facts constitute an infringement, attributable to SALUS BALEARES, for violation of Article 5.1.f) of the GDPR.

VII

Classification of the infringement of Article 5.1.f) of the GDPR

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The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period: those that involve a substantial violation of the articles mentioned therein and, in particular, the following:
a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VIII

Sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available, it is appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- Article 83.2.a) GDPR: Nature, severity, and duration of the infringement.

The nature of the infringement is considered serious as it entails a loss of confidentiality and, therefore, of disposition and control over personal data.

High number of affected parties: all individuals who accessed the clinic during the entire time that the temperature was being monitored in the manner and under the circumstances described.

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- Article 83.2.b) GDPR. Intent or negligence in the infringement: While it is considered that there was no intent on the part of SALUS BALEARES, negligence can be observed in the compliance and observance of the technical and organizational measures to ensure the necessary security for the protection of personal data, specifically to guarantee their confidentiality, since temperature checks of users visiting the clinic were conducted in such a way that they could be visualized by other individuals present in the waiting room or reception area, which reflects negligence, especially considering that these are health data. In this regard, it should be noted that SALUS BALEARES is a clinic and, therefore, accustomed to processing personal data, specifically health data.

It is worth recalling, in this sense, the Judgment of the National Court of 17/10/2007 (rec. 63/2006), which regarding entities whose activity involves the continuous processing of customer data, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on the rigor and exquisite care to comply with the legal provisions in this regard."

- Article 83.2.g) GDPR. Categories of personal data affected by the infringement: Personal data related to health have been affected.

Furthermore, it is considered appropriate to grade the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating factors:

- Article 76.2.b) LOPDGDD. Link between the infringer's activity and the processing of personal data: The development of the business activity carried out by SALUS BALEARES involves continuous processing of personal data, many of which are health-related. Therefore, it is a company accustomed to processing personal data.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available, taking into account the circumstances of the case and the criteria established in Article 83.2 of the GDPR regarding the infringement committed by violating the

provisions of Article 5.1.f) of the GDPR, it is appropriate to set a sanction of €20,000 (TWENTY THOUSAND EUROS).

IX

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

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"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular attention shall be paid to the risks presented by the data processing, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law." (the underlining is ours)

Article 32 does not establish static security measures; it is up to the controller to determine which security measures are necessary to ensure the confidentiality, integrity, and availability of personal data. Therefore, the same data processing may involve different security measures depending on the specific circumstances in which such data processing takes place.

Recital 83 of the GDPR states: In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or processor must assess the inherent risks of processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that needs to be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

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una comunicación o acceso no autorizados a dichos datos, susceptibles en particular de ocasionar daños y perjuicios físicos, materiales o inmateriales. (the underlining is ours)

The security of data requires the application of appropriate technical or organizational measures in the processing of personal data to protect such data against unauthorized or unlawful access, use, modification, dissemination, loss, destruction, or accidental damage. In this sense, security measures are key to guaranteeing the fundamental right to data protection. The existence of the fundamental right to data protection is not possible if the confidentiality, integrity, and availability of such data cannot be guaranteed.

It should not be forgotten that, in accordance with Article 32.1 of the GDPR, the technical and organizational measures to be applied to ensure a level of security appropriate to the risk must take into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons.

In this regard, due to the activity carried out by SALUS BALEARES and the personal data it processes, it is obliged to conduct a risk analysis and implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk of its activity for the rights and freedoms of individuals, taking into special account that its activity involves processing health data.

In this case, the processing of health data (temperature measurement) is carried out in a manner and using means that are not appropriate to ensure adequate security of personal data, specifically to guarantee their confidentiality, since the data regarding body temperature is susceptible to being viewed by unauthorized third parties.

This reveals negligent conduct in anticipating a readily detectable and assessable risk (temperature visible and in a public access area) and in failing to implement measures to prevent or mitigate it.

In accordance with the available evidence, it is considered that the known facts constitute an infringement attributable to SALUS BALEARES for violation of Article 32 of the GDPR.

X

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following shall be considered serious and shall be subject to a limitation period of two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.

XI

Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the available evidence, it is appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- Article 83.2.a) GDPR: Nature, gravity, and duration of the infringement.

It is considered that the nature of the infringement is serious since it entails a loss of confidentiality

and, therefore, of disposition and control over personal data.

High number of affected individuals: all persons who have accessed the clinic during the entire time that temperature has been monitored in the manner and under the circumstances described.

- Article 83.2.b) GDPR. Intentionality or negligence in the infringement: While it is considered that there was no intentionality on the part of SALUS BALEARES, it can be noted that there was negligence in the management of the situation.

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There is evidence of negligence in the compliance and observance of the technical and organizational measures necessary to ensure the security required for the protection of personal data, specifically to guarantee their confidentiality, as there was a temperature check of users attending the clinic in such a way that it was possible for other people in the waiting room or reception area to visualize it, which reflects negligence, especially considering that these are health data.

It is worth recalling, in this regard, the Judgment of the National Court of 17/10/2007 (rec. 63/2006), which regarding entities whose activities involve the continuous processing of customer data, indicates that "...the Supreme Court has understood that there is imprudence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard.

- Article 83.2.g) GDPR. Categories of personal data affected by the infringement: Personal data related to health has been affected.

Furthermore, it is considered appropriate to adjust the sanction to be imposed according to the following criteria established in section 2 of article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating factors:

- Article 76.2.b) LOPDGDD. Link between the offender's activity and the processing of personal data: The development of the business activity carried out by SALUS BALEARES (clinic) involves continuous processing of personal data, many of which are health-related. Therefore, it is a company accustomed to the processing of personal data.

The balance of the circumstances contemplated in article 83.2 of the GDPR regarding the infringement committed by violating the provisions of article 32 of the GDPR allows for the imposition of a sanction of 10,000 (ten thousand euros).

Therefore, in accordance with the applicable legislation and considering the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on CENTRO MÉDICO SALUS BALEARES, S.L., with NIF B07060478, for an infringement of article 5.1.f) of the GDPR, classified under article 83.5 of the GDPR, a fine of 20,000.00 euros (TWENTY THOUSAND EUROS), and for an infringement of article 32 of the GDPR, classified under article 83.4 of the GDPR, a fine of 10,000.00 euros (TEN THOUSAND EUROS), which totals an amount of 30,000 € (THIRTY THOUSAND EUROS).

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THIRD: NOTIFY this resolution to CENTRO MÉDICO SALUS BALEARES, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired

without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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